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IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT OF FLORIDA

Case No. _____

DBPR File No. 2025-04461

MV REALTY PBC, LLC d/b/a MV REALTY; MV BROKERAGE OF FLA., LLC; FORD HOMES, LLC; AND AMANDA ZACHMAN,

Petitioners,

v.

STATE OF FLORIDA DEPARTMENT OF BUSINESS AND PROFESSIONAL REGULATION,

Respondent.

On Appeal from an Amended Order of Emergency Suspension of License issued by the Department of Business and Professional Regulation, DBPR 2025-04461

PETITION FOR REVIEW OF AGENCY EMERGENCY ACTION

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BASIS FOR JURISDICTION

Petitioners, MV Realty PBC, LLC d/b/a MV Realty (“MV Realty PBC”), MV Brokerage of Fla., LLC (“MV Brokerage”); Ford Homes, LLC (“Ford Homes”); and Amanda Zachman (“Ms. Zachman”) (collectively "Petitioners") file this petition for review, pursuant to Florida Rules of Appellate Procedure 9.190(b)(2) and 9.100(b), to quash the Amended Order of Emergency Suspension of License issued on May 6, 2025 (“Amended ESO”) by the Department of Business and Professional Regulation (“DBPR”), immediately suspending six (6) of Petitioners’ Real Estate Broker licenses and preventing Petitioners from engaging in the practice of the real estate profession within the State of Florida.

This court has original jurisdiction pursuant to Article V, § 4(b)(2) of the Florida Constitution and Florida Rules of Appellate Procedure 9.190(b)(2), and 9.100 to review and quash administrative agency orders of emergency license suspensions.

Petitioners seek review of the Amended ESO on the grounds that it is facially deficient under section § 120.60(6), Florida Statutes, and should therefore be quashed. As detailed herein, an acute need exists for appellate review given the immediate threat of irreparable harm to Petitioners and substantial economic harm to Florida customers, neither of which can be

remedied via a plenary appeal. For these reasons, the Court's acceptance of jurisdiction in this case is both proper and consistent with general law.

STATEMENT OF FACTS ON WHICH PETITIONERS RELY

I. THE PETITIONERS & RESPONDENT.

MV Realty PBC is a licensed Florida-based residential real estate brokerage formed in August 2014 [License No. CQ: 1046757], which has served thousands of Florida homeowners and, through its Homeowner Benefit Program ("HBP"), has paid Florida homeowners several million dollars in exchange for the exclusive right to list their homes at a future date. (APPENDIX-106.) MV Realty PBC services Florida homeowners who are part of its HBP program, but also services Florida homeowners who are not part of the HBP program in its capacity as a traditional residential real estate brokerage. Since MV Realty PBC's inception, Ms. Zachman has served as the qualifying broker for MV Realty PBC [License No. BK: 3244459]. (APPENDIX-107 (¶¶ 2-4).)

MV Brokerage is a distinct Florida-based residential real estate brokerage formed on November 1, 2022 [License No. CQ: 1066617]. (*Id.*) Ms. Zachman has also served as MV Brokerage's qualifying broker since its inception [License No. BK: 3557365]. (*Id.*)

Ford Homes, a distinct Florida-based brokerage, was created on June 27, 2024, and licensed on July 3, 2024 [License No. CQ: 1070724]. (*Id.*) It provides traditional brokerage services, is not affiliated with MV Realty PBC, the HBP, or MV Brokerage, and has no involvement whatsoever with MV Realty PBC's HBP. Ms. Zachman has served as its qualifying broker since its inception in 2024 [License No. BK: 3614044]. (*Id.*)

The DBPR is the agency charged with licensing and regulating real estate professionals in Florida and also issued Petitioners their licenses in accordance with Chapter 475, Florida Statutes. (APPENDIX-107 (¶ 1).)

II. THE ONGOING ATTORNEY GENERAL LAWSUIT.

At the crux of and the admitted sole basis for the Amended ESO's issuance are allegations drawn from the complaint and unresolved motion practice in an ongoing civil lawsuit filed by the Florida Office of the Attorney General ("OAG") on November 29, 2022 in the Thirteenth Judicial Circuit in and for Hillsborough County, Florida (the "State Court Litigation"). (*See* APPENDIX-118-159 (the "OAG Complaint").)

In the State Court Litigation, the OAG sued MV Realty PBC, Ms. Zachman, and three other parties to which the Amended ESO is not directed, asserting claims under Florida's Deceptive and Unfair Trade Practices Act ("FDUTPA") in Count I and III of the Complaint. (*Id.*) Count I targets MV

Realty PBC exclusively, while Count III names Ms. Zachman and others individually affiliated with the MV Realty PBC. *(Id.*)

Neither MV Brokerage, Ford Homes, nor Ms. Zachman's licenses in connection therewith are parties to or subject of the State Court Litigation. (*Id.*)

The Complaint alleges that between 2018 and November 2022, MV Realty PBC executed approximately 9,303 homeowner benefit agreements ("HBAs"), allegedly containing "misleading and confusing" terms. (APPENDIX-118-121(¶¶1-5).) The HBA is an agreement whereby a homeowner is paid an upfront cash amount in exchange for providing MV Realty PBC the right to list their home for sale in the future, if and when a homeowner decides to sell their home during the term of the HBA. The homeowner has no obligation to sell their home and keeps the upfront payment regardless of whether they do or do not decide to sell their home during the term of the agreement.

MV Realty PBC is named in the Complaint as the entity operating the HBA program. (APPENDIX-123 (¶ 18).) Ms. Zachman is named as an individual defendant in the Complaint in her capacity as MV Realty PBC's qualifying broker. (APPENDIX-124 (¶ 22).) MV Brokerage, Ford Homes, and Ms. Zachman's role as the qualifying broker for those entities, are not the

subject of or even referenced in the Complaint's allegations nor have they even been mentioned as part of the litigation in the almost three years since the suit was filed.

Critically, MV Realty PBC ceased enrolling Florida homeowners in the HBA program as of November 2022, almost two years prior to Ford Homes' creation. (APPENDIX-161 (¶ 3).) The DBPR is well aware of this considering they are the state agency that licensed Ford Homes as a real estate brokerage on July 3, 2024, one week after the entity was created and registered with the Florida Division of Corporations. (APPENDIX-106.)

III. THE DBPR ISSUED THE INITIAL ESO AND AMENDED ESO WITHOUT ANY NOTICE TO PETITIONERS.

On May 2, 2025—at the urging of the OAG in order to obtain leverage in the State Court Ligation in connection with ongoing motion practice and without prior notice to the affected parties[1]—the DBPR issued an initial Emergency Suspension Order (the "Initial ESO[2]") [ESO #2025-04415]. (APPENDIX-001-105.) The Initial ESO suspended the real estate licenses of

[1] The DBPR did not serve Petitioners with the Initial ESO by mail or e-mail. Rather, Petitioners only learned of the Initial ESO when the OAG filed it as an exhibit as part of ongoing motion practice in the State Court Litigation.

[2] The Initial ESO and Amended ESO are collectively, the "Orders."

the Petitioners, except that of Ford Homes, and directed Petitioners to immediately cease all brokerage activity in Florida. (APPENDIX-012.)

Four (4) days later, once again at the OAG's urging in order to obtain leverage in the State Court Ligation in connection with ongoing motion practice, on May 6, 2025, the DBPR issued an Amended ESO [ESO #2025-04461], expanding the immediate suspension to include the license of Ford Homes. (APPENDIX-106-210.) Again, the DBPR failed to properly serve or notify the Petitioners[3] as to the Amended ESO. (*Id.*)

Neither Order includes a certificate of service, nor do they demonstrate compliance with § 455.275(2), Fla. Stat. (service by email or mail). Furthermore, neither Order notified Petitioners of their immediate right to appeal, as required by Fla. Admin. Code R. 28-106.501(2). (APPENDIX-012, 117.)

Instead, the Amended ESO merely states that "the summary procedure is fair under the circumstances to adequately protect the public from Ms. Zachman and MV Realty [PBC], who. . .will be provided with due process in

[3] The DBPR did not serve the Amended ESO upon Petitioners, who only learned of this Amended ESO when the OAG filed it as an exhibit as part of ongoing motion practice in the State Court Litigation.

accordance with section 120.60(6), Florida Statutes, and other applicable statutes and rules." (APPENDIX-116-117 (¶ 25).)

IV. THE AMENDED ESO'S LACK OF SUBSTANCE FAILS TO GIVE PETITIONERS' NOTICE OF ANY 'EMERGENCY' REQUIRING IMMEDIATE SUSPENSION.

The DBPR purported to act under § 120.60(6), Fla. Stat., claiming that all of Petitioners' continued brokerage operations constitute "an immediate and serious danger to the safety and welfare of the public." (APPENDIX-116 (¶ 24).) Yet the factual basis for that assertion consists of only 25 paragraphs in which Petitioners are lumped together approximately 41 times—without distinguishing amongst the Petitioners or even once referencing MV Brokerage or Ford Homes' actions as a basis for issuance specifically at any point. (APPENDIX-106-117.) Not once in any of the 25 paragraphs referenced above is there any fact that establishes any nexus between the safety and welfare of the public and the licensure of the Petitioners. (*Id.*)

What renders the Amended ESO even more improperly ambiguous is the DBPR's citation to six (6) purported case numbers or complaints (collectively, the "DBPR Complaints") cited to by the DBPR on the first page of the Amended ESO as 2024-057587, 2024-065591, 2024-057581, 2024-065646, 2024-065653, and 2024-065710—directed solely at MV Realty PBC and Ms. Zachman—without offering any explanation whatsoever as to the

basis for same or how these DBPR Complaints justify the Amended ESO. (APPENDIX-106.) The facts attendant to the six referenced DBPR complaints were omitted from the Amended ESO, and had the DBPR included any facts from those complaints, they would have revealed the complete lack of urgency or threat to the public considering how MV Realty PBC and/or Ms. Zachman responded to and resolved each of the complaints and the lack of any conduct evidencing any violation of law or requiring action by the DBPR, all of which pre-date the Amended ESO by at least six months. What is more, the DBPR has investigated MV Realty PBC dating back to 2020, and has issued numerous no probable cause findings in connection with the majority of complaints received.

Indeed, two of the six DBPR's Complaints cited in the Amended ESO against only that of MV Realty PBC and Ms. Zachman in her capacity as its qualifying broker are solely predicated upon communications between the DBPR and the OAG as well as allegations contained in the OAG's Complaint. The remaining four DBPR Complaints received by the DBPR in 2024 cited to without any detail in the Amended ESO are primarily directed solely to purported conduct of MV Realty PBC, are wholly unsubstantiated, provide no probable cause for taking any adverse action against Petitioners, and do not establish any urgency or facts to justify the unjustified punishing nature

of the Amended ESO. A summary elucidating the lack of any support for issuance of the Amended ESO as to those complaints received by the DBPR, which are cited to in the Amended ESO evidencing the clear strategy employed by the DBPR for not addressing any of the details of each of the complaints in the Amended ESO, follows:

A. Case No. 2024-065591 Against Amanda Zachman ("Malo Complaint") (Dated November 15, 2024)

Nathalian Nathan Malo is not an MV Realty PBC HBP customer. Mr. Malo is a competing real estate broker employed with AmeriCastle Realty Corp. Mr. Malo filed an DBPR complaint against Ms. Zachman, although he never dealt with her directly in any capacity, on November 15, 2024. The complaint alleged violations of Stat. 475.42(1)(i) (filing a lien in order to collect a residential commission) and Stat. 475.279 (attempt to enforce a lien emanating from a Residential Loan Alternative Agreement after two years). Mr. Malo expressed dissatisfaction with various terms of the HBA, to which he is not a party, and alleged he was trying to organize a closing for a property, but MV Realty PBC would not "release their cloud" from the property. The complaint filing included a copy of the non-final order on cross-motions for summary judgment issued in the State Court Litigation.

In reality, Mr. Malo, through his company SSG Worldwide LLC, purchased a foreclosure property from an MV Realty PBC customer,

Jonathan Timpson, on or around August 8, 2023. Mr. Timpson had previously executed an HBA with MV Realty PBC for the property in question on December 15, 2021. At the time Mr. Malo purchased the property from Mr. Timpson, the HBA was and remained effective. The statute cited to as the basis for Mr. Malo's complaint, Fla. Stat. 475.25, was enacted in July 2023 and has no retroactive effect as same would violate the constitution of this State and is inapplicable to the HBA executed by Mr. Timpson on December 15, 2021.

In early November 2024, over a year after purchasing Mr. Timpson's home in foreclosure, Mr. Malo requested that MV Realty PBC terminate its HBA in preparation for his planned resale of the property. Shortly after receiving Mr. Malo's request, on or around November 21, 2024, MV Realty PBC voluntarily terminated its HBA with Mr. Timpson in connection wit the property at issue although it had no contractual obligation to do so and did not collect any monies from either Mr. Malo or Mr. Timpson in exchange for doing so. Nonetheless, Mr. Malo complained that MV Realty PBC did not terminate quickly enough and filed his complaint with the DBPR.

MV Realty PBC and Ms. Zachman provided information and documentation as to the foregoing to the DBPR in its response to the

complaint dated December 14, 2024. The DBPR did not respond in any manner addressing the points above or make additional inquiry.

B. Case No. 2024-065646 Against MV Realty PBC, LLC ("Decker Complaint") (Dated November 13, 2024)

Patricia A. Decker, an MV Realty PBC HBP customer, filed a DBPR complaint against MV Realty PBC on November 13, 2024. The complaint alleged violations of Fla. Stat. 475.25(1)(B) (violation of a duty imposed by a listing agreement), Fla. Stat. 475.25(1)(r) (failure to provide a copy of a signed listing agreement to the seller within 24 hours), and Fla. Stat. 475.279(4) (failure to initiate listing services associated with a Residential Loan Alternative Agreement within 90 days of execution of the Agreement). Fla. Stat. 475.25 was enacted in July 2023, has no retroactive effect as same would violate the constitution of this State, and is inapplicable to the HBA executed by Ms. Decker on June 29, 2020. Ms. Decker also claimed MV Realty PBC sent her "threatening emails and letters" when she tried to sell her house and that MV was "screwing up her house sale."

In reality, Ms. Decker simultaneously executed an HBA and MV Realty PBC Ambassador Agreement (which allowed Ms. Decker to earn money for referring customers to MV Realty PBC) on June 29, 2020. On July 18, 2023, Ms. Decker executed a Listing Agreement in with MV Realty PBC for the sale of her home for $399,900. Ms. Decker insisted on the listing price, against

the advice of her MV Realty PBC agent who advised that the listing price was too high. That same month, within mere weeks of executing the Listing Agreement, Ms. Decker filed a complaint about MV Realty PBC with the OAG in an attempt to be released from the HBA she had executed. Just a few weeks later, at Ms. Decker's request MV Realty PBC entered a twelve-month referral agreement with a referral agent of Ms. Decker's choosing, Samantha Decker of ERA Advantage Realty. Samantha Decker is the daughter-in-law of Ms. Patricia Decker. MV Realty PBC did so voluntarily and had no contractual obligation to do so. The Referral Agreement provided that the referral agent would pay MV Realty PBC 50% of the agent's commission received by the referral agent as a result of the sale of the home, which is half of what MV Realty PBC was contractually entitled to pursuant to the terms of the HBA.

Ms. Decker listed her home with the referral agent for $335,000, approximately $65,000 less than her initial listing price with MV Realty PBC. Ms. Decker ultimately sold her home with the referral agent for $320,000 in January 2024, approximately $80,000 less than her initial listing price with MV Realty PBC.

MV Realty PBC provided information and documentation as to the foregoing to the DBPR in its response to the complaint dated December 12,

2024. The DBPR did not respond in any manner addressing the points above or make additional inquiry.

C. Case No. 2024-065653 Against MV Realty PBC, LLC ("York Complaint") (Dated November 13, 2024)

Janet York, an MV Realty PBC HBP customer, filed a DBPR complaint against MV Realty PBC on November 13, 2024. The complaint alleged violation of Stat. 475.279 (failure to release lien on property associated with Residential Loan Alternative Agreement after two years) and also claimed that MV Realty PBC was not responding to her phone calls, although the company's records show that is inaccurate and MV Realty PBC was in constant contact with Ms. York via email and text and always responded to any inquiry by Ms. York within twenty-four hours.

Ms. York executed an MV Realty PBC HBA on July 30, 2022. Fla. Stat. 475.25 was enacted in July 2023, has no retroactive effect as same would violate the constitution of this State, and is inapplicable to the HBA executed by Ms. York on July 30, 2022.

From April 2023 though May of 2023, Ms. York sought MV Realty PBC's assistance with respect to a refinance transaction she was undertaking with Rocket Mortgage. Rocket Mortgage requested that MV Realty provide a subordination agreement with respect to MV Realty PBC's contractual rights pursuant to the HBA executed by Ms. York in order to

facilitate the refinance transaction, which MV Realty PBC complied with, and Ms. York was successfully able to complete her refinance transaction without issue.

Thereafter, on May 23, 2024 at Ms. York's request, MV Realty PBC executed a twelve-month referral agreement with Ms. York's referral listing agent of choice, Keller Williams Realty Gulf Coast, although MV Realty PBC had no contractual obligation to do so. The referral agreement provided that the referral agent would pay MV Realty PBC 30% of the commission income received by the referral agent in connection with the sale of Ms. York's home, which is only 30% of what MV Realty PBC was contractually entitled to pursuant to the terms of the HBA. After the sale of the home, MV Realty PBC terminated its HBA, releasing Ms. York from the obligations thereof.

MV Realty PBC provided information and documentation as to the foregoing to the DBPR in its response to the complaint dated December 12, 2024. The DBPR did not respond in any manner addressing the points above or make additional inquiry.

D. Case No. 2024-065710 Against MV Realty PBC, LLC ("Sahani Complaint") (Dated November 17, 2024)

Lisa Sahani, an MV Realty PBC HBP customer, filed an DBPR complaint against MV Realty PBC, LLC on November 17, 2024. The complaint alleged violations of Stat. 475.25(1)(B) (violation of duty imposed

by a listing agreement). The substance of Ms. Sahani's complaint is as follows: 1) she claimed that MV Realty PBC did not have an agent located near her property; 2) that MV Realty PBC listed her home for 6 weeks using an in correct phone number, which she also states was corrected; 3) that MV Realty PBC "charged" her new non-MV broker a 50% commission on the sale price of the home; and 4) that MV Realty placed a lien on her home.

None of the foregoing is accurate. In reality, Ms. Sahani executed an HBA with MV Realty PBC on June 26, 2022. The following year, on June 17, 2023, Ms. Sahani executed a listing agreement for the sale of her home with MV Realty PBC. She initially listed her home with MV Realty PBC acting as her broker for $444,444, and asked MV Realty PBC to only conduct virtual as opposed to in-person showings because her son worked remotely from her home. When Ms. Sahani complained to MV Realty PBC that she was not happy with the activity on her home, MV Realty PBC attempted to work with her and even offered to shorten the listing period to three months, as opposed to the six months contracted for, but Ms. Sahani refused. Instead, Ms. Sahani requested to be referred to another agent. MV Realty PBC continued to attempt to comply with her requests although it had no contractual obligation to do so, and removed the listing after only two months and executed a referral agreement with Ms. Sahani's referral agent of choice,

Pinnacle Realty Advisors. The referral agreement provided that the referral agent would pay MV Realty PBC 40% of the total broker commission received by the referral agent in connection with the sale of the home, which is only 40% of what MV Realty PBC was contractually entitled to pursuant to the terms of the HBA. Ms. Sahani ultimately sold her home with her referral agent of choice for $375,000 in February 2024, approximately $70,000 less than the initial price for which MV Realty PBC had listed her home.

MV Realty PBC provided information and documentation as to the foregoing to the DBPR in its response to the complaint dated December 12, 2024. The DBPR did not respond in any manner addressing the points above or make additional inquiry.

E. Case No. 2024-057581 Against MV Realty PBC, LLC ("OAG Non-Final Summary Judgment Order MV Realty PBC Complaint") (Dated October 4, 2024)

The DBPR filed an internal complaint against MV Realty PBC, LLC on October 4, 2024. The complaint packet included the following: (1) a Complaint Profile indicating an unsubstantiated and non-specified allegation of violation of FL ST 475.25(1)(B); (2) an email chain between Special Counsel Ellen K. Lyons of the OAG, which division is currently in active litigation against MV Realty PBC and Ms. Zachman; (3) a cover letter advising MV Realty PBC that the complaint had been filed; and (4) a copy of

the non-final Order on Cross-Motions for Summary Judgment drafted by the Hon. Darren D. Farfante, Circuit Judge of the Circuit Court of the Thirteenth Judicial Circuit in and for Hillsborough County, Florida in regards to Case No. 22-CA-9958, Office of the Attorney General, State of Florida, Department of Legal Affairs v. MV Realty PBC, LLC, et al.

As referenced above, the complaint filing included an email, dated October 4, 2024 with subject line “MV Realty”, sent by Ellen K. Lyons of the OAG, to Sara Kimmig, Chief of the Bureau of Enforcement in the DBPR’s Division of Real Estate. In the email, Ms. Lyons advises the DBPR of the entry of a non-final order of summary judgment in the OAG’s favor entered against MV realty PBC and other parties, which non-final order is currently on appeal due to several grievous legal and evidentiary errors. Ms. Kimmig forwarded Ms. Lyons’ email to Janice Lugo, Investigator Supervisor of the DBPR’s Division of Real Estate/Enforcement/Orlando, directing Ms. Lugo to “have new complaints processed against the BK and CQ [broker licenses] alleging 475.25(1)(b) concerns.” Ms. Lugo then directed other DBPR personnel to process those complaints as internal DBPR complaints.

MV Realty PBC responded to the internal complaint asserting that 1) the complaint failed to include any actual complaint form or point to any actual violation; and 2) the non-final order was just that, a *non-final* order,

that had yet to be finalized by the Court and was subject to a pending appeal. The DBPR did not respond in any manner addressing the points above or make additional inquiry.

F. Case No. 2024-057587 Against Amanda Zachman ("OAG Non-Final Summary Judgment Order Zachman Complaint") (Dated October 4, 2024)

The DBPR also filed an internal complaint against Ms. Zachman on October 4, 2024, identical to and simultaneously with that above. The complaint packet included the same materials addressed in that of the above-referenced OAG Non-Final Summary Judgment Order MV Realty PBC Complaint and was subject of the email correspondence between the OAG and DBPR discussed above directing the DBPR to file the internal complaint.

Ms. Zachman responded to the internal complaint asserting that 1) the complaint failed to include any actual complaint form or point to any actual violation; and 2) the non-final order was just that, a *non-final* order, that had yet to be finalized by the Court and was subject to a pending appeal. The DBPR did not respond in any manner addressing the points above or make additional inquiry.

The instances cited to above make clear that there is no legitimate basis upon which the DBPR issued the Amended ESO as it relates to the six

complaints cited to therein. Not a single complaint cited to by the DBPR in support of the Amended ESO identifies an emergency requiring the issuance of the Amended ESO. Indeed, it is confounding how in four of the instances summarized above related to consumer or agent complaints, it was neither MV Realty PBC or Ms. Zachman that acted as the homeowner's agent in the sale of their home. This fact belies the Amended ESO as necessary to prevent public harm in the future, when the complaints cited to the by the DBPR in support of the Amended ESO do not even demonstrate harm by any Petitioner to any customer in the past.

The DBPR's reasoning in the Amended ESO instead relies on the OAG's Complaint, which itself contains only allegations relating to purported conduct that MV Realty PBC would have ceased in November 2022. (APPENDIX-118-159.) The Amended ESO further relies on a court order currently under appeal, a motion to compel that has been granted with no sanctions against MV Realty PBC and Ms. Zachman, and another motion still pending adjudication which has since been resolved without need for hearing to the OAG's satisfaction. (APPENDIX-107-115 (¶¶ 5-10, 20).)

V. THE AMENDED ESO HAS AND WILL CONTINUE TO CAUSE IRREPARABLE HARM TO PETITIONERS AND FLORIDIANS ALIKE.

The Amended ESO's asserted basis for the purported danger is due to Ms. Zachman and MV Realty PBC's alleged non-compliance with a court order in the State Court Litigation. (APPENDIX-116 (¶ 24).) The DBPR reasons that Petitioners' license suspensions are proper because the actions of "Ms. Zachman and her companies clearly show that they will not abide by the orders of the civil court which are meant to prevent them from doing further harm to the public via HBA scheme. Similarly, there is no reason to believe that any kind of restriction upon these licenses will be followed by Ms. Zachman and her company. At best, any such prophylactic measures would merely lead to yet another 'tweak' by Ms. Zachman and MV Realty[.]" (*Id.*) Yet the Amended ESO omits how an alleged violation of a court order, related to actions controlled only by one of the Petitioners, MV Realty PBC, forms the basis for the Amended ESO with regard to any Petitioner, let alone those who have no control over the alleged violation. Notably, the Amended ESO omits what prior measures the DBPR previously enforced against Petitioners – there are none, contains no concrete evidence of actual consumer harm – as none exists, nor does it identify a single consumer or

transaction that has been adversely affected by any action on the part of any of the Petitioners.

Upon learning of the Initial ESO through the OAG's filing in the State Court Litigation, Petitioners halted operations under their various brokerage licenses as of May 5, 2025, without having been afforded due process and the opportunity to contest the suspension or present evidence on their own behaves.[4]

As a result, Petitioners and Floridians are suffering—and continue to suffer—irreparable harm. Real estate transactions in progress have stalled, listings, with no connection to the aforementioned litigation or the HBA program, have gone unattended, and the public is deprived of access to the licensed professional with whom they contracted mid-transaction. Petitioners face catastrophic losses in income, reputation, and market position. These harms cannot be undone by a post hoc license reinstatement.

Most severely, compliance with the Amended ESO risks destroying Ms. Zachman's livelihood and extinguishing her ability to serve existing and

[4] On June 2, 2025, almost one month post-issuance of the Amended ESO, the DBPR served four (4) administrative complaints solely upon MV Realty PBC based upon four of the DBPR Complaints referenced in the Amended ESO. As of the date of this Petition, the DBPR has not initiated proceedings directly as to Ms. Zachman, MV Brokerage, or Ford Homes.

future clients—effectively nullifying her professional career without due process.

The DBPR's decision to issue the Amended ESO under § 120.60(6), without notice, service, or a hearing, and based solely on allegations in pending State Court Litigation, which was commenced in 2022 based on the same business methods described as presently problematic in the Amended ESO, violates basic principles of administrative law and procedural due process. The record, as it stands, fails to support a finding of an "immediate and serious danger" that would justify such extraordinary relief.

SUMMARY OF THE ARGUMENT

The Amended ESO runs afoul of numerous legal requirements and suffers from significant factual and legal deficiencies and should therefore be quashed. Absent an order of this Court, the Amended ESO will result in irreparable harm to Petitioners and cause economic harm to Florida residents.

The DBPR failed to comply with section 120.60(6), Florida Statutes, when it ordered the emergency suspension of Petitioners' brokerage licenses. The Court should quash the Amended ESO on the grounds that it: (1) fails to cite with particularity and specificity to any alleged wrongful conduct by Petitioners, collectively or individually, that poses an immediate

serious danger to the public that is likely to continue in the absence of the Amended ESO; (2) fails to assert facts to show that the emergency license suspensions are necessary to protect the public as to the Petitioners, either individually or collectively; and (3) fails to consider alternative, less-harsh remedies in violation of its duty to narrowly tailor the ESO to address the alleged harm. Furthermore, the Amended ESO is neither fair nor compliant with the Florida Administrative Procedures Act, because the DBPR never served the Amended ESO upon Petitioners by e-mail or mail and lacks any information on Petitioners' right to appeal as mandated by Fla. Admin. Code. R. 28-106.501(2). The Amended ESO was required to include a notice of Petitioners' "right to an immediate appeal" pursuant to Fla. Stat. § 120.60(6), yet lacked this requisite language.

The DBPR has deprived Petitioners of essential due process protections and adversely impacted Petitioners without affording Petitioners the procedural protections guaranteed under Florida law and the United States Constitution.[5] Any one of these deficiencies is sufficient grounds for the Court to set aside the Amended ESO.

[5] Indeed, as discussed below in the context of irreparable harm, although the order is labeled as an order of *suspension,* it is in fact a summary revocation of Petitioners' brokerage licenses without prior notice or opportunity to be heard. The DBPR's improper use of its emergency suspension powers and directives to Petitioners pursuant to the Amended ESO raises serious

Accordingly, the DBPR departed from the essential requirements of the law as required by section 120.60(6), Florida Statutes, and all applicable case law. For these and the reasons stated below, the Amended ESO should be quashed.

ARGUMENT

I. THE AMENDED ESO IS FACIALLY DEFICIENT AND FAILS TO COMPLY WITH THE REQUIREMENTS OF SECTION 120.60(6), FLORIDA STATUTES.

Pursuant to sections 120.60(6) and 455.225(8), Florida Statutes, the DBPR may summarily suspend, restrict, or limit a license in an emergency only if it finds an immediate serious danger to public health, safety, or welfare, uses a fair procedure that meets constitutional standards, limits its action to what is necessary, and provides a written statement of specific facts and reasons. *See* § 120.60(6), Fla. Stat. "These statutory safeguards ensure a proper balance between protecting the public from harm and preserving licensees' property interest prior to giving them full due process." *Nath v. State Dep't of Health*, 100 So. 3d 1273, 1276 (Fla. 1st DCA 2012).

When evaluating the sufficiency of an emergency order, an appellate court is limited to examining the face of the order itself to determine if the elements were alleged with sufficient detail. *See Id.* at 1276. To satisfy the

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constitutional concerns, including a substantial takings issue.

demanding standards of section 120.60(6), an emergency order must convincingly demonstrate that: (1) the complained of conduct possesses an immediate serious danger to the public health, safety, or welfare, and is likely to continue; (2) the ESO is necessary to stop the emergency and protect the public; and (3) the ESO is sufficiently narrowly tailored to be fair. *See e.g., Nath,* 100 So. 3d at 1276; *See also Kaplan v. Dep't of Health,* 45 So. 3d 19, 21 (Fla. 1st DCA 2010)(emphasis added); *Bio-Med Plus, Inc. v. Dep't of Health,* 915 So. 2d 669, 672 (Fla. 1st DCA 2005). As is the case here, if any of those elements are absent, the emergency order will not withstand judicial review by an appellate court. *See Kaplan,* 45 So. 3d at 19. Therefore, "[t]he agency's stated reasons for acting cannot be general or conclusory, but 'must be factually explicit and persuasive concerning the existence of a genuine emergency.'" *Field v. Dep't of Health*, 902 So. 2d 893, 895 (Fla. 1st DCA 2005) (citations omitted); *See BAM Trading Services, Inc. v. Off. Of Fin. Reg.,* 395 So. 3d 687, 692 (Fla. 1st DCA 2024). In the matter at hand, the DBPR did not carefully consider or establish these three elements in the Amended ESO, and consequently departed from the essential requirements of law.

A. The Amended ESO Neither States Any "Continuing Emergency" Nor Articulates Any Immediate Serious Danger to the Public Health, Safety, or Welfare.

An agency issuing an ESO must present "particularized" facts that show the order is "necessary to stop any emergency created by the conduct complained of" and "facts showing that the conduct complained of was likely to continue." *Kaplan,* 45 So. 3d at 21. In its Amended ESO, the DBPR simply concludes that, because only that of MV Realty PBC and Ms. Zachman purportedly refuse to comply with court orders issued in the State Court Litigation—some of which are currently on appeal and the subject of ongoing motion practice—Petitioners' "continued real estate practice and business operations in Florida constitute an immediate and serious danger to the safety and welfare of the public[.]" (APPENDIX-116 (¶ 25).)

Critically, the DBPR does not present any facts that show how Petitioners' conduct, individually or collectively, either: i) placed the public in immediate danger or ii) assuming such a danger even existed, created a continuing emergency necessitating the immediate suspension of their real estate brokerage licenses. *See Premier Travel International, Inc. v Florida Dep't of Agriculture and Consumer Services,* 849 So. 2d 1132, 1135 (Fla. 1st DCA 2003) (explaining that because an emergency order deprives the affected party of due process, the order must establish that the alleged harm

or offense is likely to continue); *see also Wolf v. Gallagher,* 629 So. 2d 1066, 1067 (Fla. 2d DCA 1994) (holding there is no immediate serious danger to public health, safety, and welfare because "[n]othing in the [emergency] order indicates that any insured or other member of the public is at risk"). While an emergency order suspending a license must be based on a finding of "immediate serious danger," the DBPR has instead based its purported emergency on allegations of past conduct which cannot be repeated. *St. Michael's Acad., Inc.,* 965 So. 2d at 172. Indeed, the DBPR even recognizes that MV Realty PBC ceased offering the HBP in Florida in 2022. (APPENDIX-161 (¶ 3).)

Throughout the Amended ESO, the DBPR is solely concerned with Ms. Zachman's past activities as the qualified broker for MV Realty PBC, devoting the entire section titled "Findings of Fact" to Ms. Zachman's alleged past conduct at MV Realty PBC between 2019 and 2022, without even one reference to how either Ms. Zachman or MV Realty PBC's activity since that time presents an immediate serious danger to the public safety, nor does the Amended ESO include any fact presenting an immediate serious danger to the public safety as to the balance of the Petitioners, MV Brokerage, Ford Homes, or Ms. Zachman's qualified brokerage licenses in connection therewith. (APPENDIX-107-112 (¶¶ 1-10).) The DBPR does not reference a

single consumer by name, relying upon the OAG's beliefs and reviews of consumer complaints. (*See* APPENDIX-128 (¶¶ 35-36).) Hence, the DBPR fails to provide any details in the Amended ESO which justify any continuing emergency that can only be resolved by immediately revoking all of the Petitioners' brokerage licenses. Critically, the Amended ESO also fails to explain in any way how any harm or wrongdoing is in any way remedied by the emergency license suspension.

In fact, as noted *supra,* there is none. Ms. Zachman and MV Realty PBC's past alleged wrongful conduct poses no current risk to any Floridian and is unchanged by the license suspension. The DBPR fails to allege or establish any immediate danger to the public that is likely to continue without the Amended ESO. There is simply no explanation as to how the Amended ESO has any nexus to preventing any danger to the public.

B. The Amended ESO Was Not Necessary to Stop Any Purported Emergency.

When issuing emergency license suspension orders, state agencies must prove why the order is necessary to stop the emergency created by the conduct complained of. *See Kaplan,* 45 So. 3d at 21. Florida courts have consistently required state agencies to factually establish a showing of specific harm that the emergency order is intended to cure. *See Witmer v. Dep't of Bus. & Pro. Regul., Div. of Pari-Mutuel Wagering,* 631 So. 2d 338,

341 (Fla. 4th DCA 1994); *See also Commercial Consultants Corp. v. Dep't of Bus. & Pro Regul.,* 363 So.2d 1162, 1165 (Fla. 1st DCA 1978) (internal citations omitted) (holding that an emergency order must be "factually explicit and persuasive concerning the existence of a genuine emergency"). In the matter at hand, the DBPR fails to provide particularized facts that show any ongoing harm exists to the public stemming from Ms. Zachman's previous activities at MV Realty PBC that may only be resolved by an emergency license suspension or that of MV Brokerage or Ford Homes in any context. Indeed, the seminal argument upon which the Amended ESO relies is the existence of a court order which is purportedly not being complied with, but yet fails to allege how the license suspension remedies that issue. Moreover, the DBPR fails to explain or cite to any precedent for how an undecided current dispute regarding a pending matter before the circuit court satisfies any legal standard for emergency license revocation. There is simply no precedent for such a position.

With respect to MV Brokerage or Ford Homes, neither of which are even parties to the OAG's Complaint, the DBPR fails to provide any facts, particularized or otherwise, as to any activity that occurred in the past or may occur in the future that could even conceivably support an assertion that ongoing harm exists to the public that may only be resolved by an emergency

license suspension. The question of whether a potential continuing harm exists is a factual determination, but the DBPR has failed to plead any material facts to permit a court or administrative forum to make such a finding.

While Florida courts have "recognized that, if there are allegations of sufficiently egregious past harm which are of a nature likely to be repeated, a license may be suspended by emergency order, despite the lack of allegations establishing the "immediacy" of harm to the public," the DBPR does not and cannot allege that any purportedly unlawful conduct by Ms. Zachman or MV Realty PBC has continued or is likely to continue, nor how the suspensions of the licenses at issue would prevent any such recurrence. *Bio-Med Plus,* 915 So. 2d at 67374 (quoting *Bertany Assoc, for Travel and Leisure, Inc. v. Fla. Dep't of Fin. Servs.,* 877 So. 2d 854, 855 (Fla. 1st DCA 2004)). The DBPR simply fails to draw a connection between any past conduct that occurred at MV Realty PBC and current operations at MV Realty PBC, MV Brokerage, Ford Homes, or any current licensed activity by Ms. Zachman.

Likewise, the DBPR fails to establish a factual predicate for the continued existence of an emergency. Neither MV Brokerage, Ford Homes, or Ms. Zachman's qualified broker status as to each are subject of or parties

to the State Court Litigation, and Ford Homes in particular and Ms. Zachman's qualified broker status and activities in connection with same have no discernible connection to MV Realty PBC's business or to the conduct alleged in the OAG's litigation.

The Amended ESO also fails to explain why the DBPR waited nearly three years after the OAG's Complaint's filing, nearly eight months after the non-final Partial Summary Judgment's was entered in the State Court Litigation, more than six months since the date of the complaints cited in the Amended ESO, and several weeks after both the order on the motion to compel and the OAG's contempt motion before issuing the Amended ESO—delays that undercut any claim of emergency or urgency. *See St. Michael's Academy*, 965 So. 2d at 173 ("The [c]ourt also notes that the time gap between a number of the incidents and the order undercuts the immediacy of the alleged danger."); *Bio-Med Plus*, 915 So. 2d at 673 (finding no immediate danger or necessity due to vague, outdated, and unsupported allegations).[6] Hence, there is no immediate danger, except for the one manufactured by the DBPR in conjunction with the OAG.

[6] The same can be said about the DBPR Complaints referenced in the Amended ESO, because the DBPR waited at least six (6) months from the date it provided MV Realty PBC with the last of the unsubstantiated DBPR Complaints to file the Amended ESO.

C. The Amended ESO Fails to Discuss Alternative Remedies, Let Alone Explain Why Less Harsh Remedies Would Be Insufficient to Stop Any Purported Emergency, in Violation of the DBPR's Duty to Narrowly Tailor the Amended ESO.

State agencies must issue narrowly tailored emergency orders that "explain why less harsh remedies ... would have been insufficient to stop the harm alleged." *Nath,* 100 So. 3d at 1276. Courts will not enforce emergency suspensions that are broader than necessary or fail explain why alternative remedies are insufficient to resolve harm. *See e.g., Daube,* 897 So. 2d at 495 (noting emergency suspension was unnecessary where petitioner had already ceased use of the unapproved product and destroyed remaining supply, eliminating any public threat); *See also Nath,* 100 So. 3d at 1276 (concluding emergency suspension was overly broad where the order failed to explain why suspension was the only means to protect current and prospective patients pending disciplinary proceedings); *Cunningham v. Agency for Health Care Admin.,* 677 So. 2d 61,62 (Fla. 1st DCA 1996) (finding a narrower order more appropriate where a single incident did not show immediate public danger).

Here, the DBPR offers no explanation why a less drastic measure to license suspension, resulting in the immediate revocation of Petitioners' real estate brokerage businesses in Florida, are insufficient to stop the alleged harm—only conclusory inferences. Nor does the DBPR offer any explanation

as to why the DBPR, who has investigated Ms. Zachman and MV Realty PBC numerous times since 2020 and took no action and found no wrongdoing, now suddenly views MV Realty PBC and Ms. Zachman as posing an imminent threat to the public. There is not one single instance where the DBPR connects Petitioners' licenses, either collectively or individually, to even one instance of consumer harm. If one existed, the Amended ESO would be replete with examples, yet none are referenced.

The DBPR focuses solely on the fact that Ms. Zachman and MV Realty PBC are involved in ongoing litigation with the OAG, suggesting that their alleged noncompliance with disputed court orders subject to ongoing motion practice and pending appeal implies that they would also ignore any license restrictions, rendering such measures ineffective. (APPENDIX-116 (¶ 24).) But this contention is not supported by any facts considering that the Amended ESO is silent as to prior "prophylactic measures" the DBPR previously imposed upon Petitioners – as none exist, such as fines, public reprimands, tailored cease and desists, or even those restrictions outlined by the DBPR's own guidelines in Fla. Admin. Code R. 61J2–24.001.

Fla Stat. 475.25 grants the DBPR discretion when disciplining its licensees, including sending the licensee a cease and desist letter, issuing administrative fines, or a public reprimand, but the Amended ESO lacks any

explanation as to why these lesser disciplinary actions would not be sufficient or why the DBPR did not take any action against Petitioners until now. *See* Fla. Stat. 475.25(1). Nor does the Amended ESO address why Petitioners, especially that of Ford Homes and Ms. Zachman, cannot provide traditional real estate brokerage services to non-HBA customers, not one of which has lodged any complaints against Petitioners. Instead, the DBPR wholly relies upon the OAG's representations and opinions as outlined in the Complaint and that of orders issued in ongoing litigation as two of six Petitioners to blanketly suspend the brokerage licenses for all Petitioners.

To the extent the DBPR had or has any legitimate, current concerns affecting Floridians, it had and still has ample authority to conduct an examination or investigation of any of the Petitioners, while affording Petitioners due process via an administrative proceeding. *See* § 455.225, Fla. Stat. (2023). Such a process would allow the DBPR to determine whether Petitioners' alleged conduct actually violated any law and, if so, whether it warrants the extraordinary remedy of an emergency license suspension.

The DBPR could have placed the Petitioners on probation, considering that this is the first disciplinary action taken by the DBPR against any of them, which alternative measure would have sufficiently addressed the DBPR's

concerns, obviated the need to issue the Amended ESO, and avoided unnecessary and irreparable financial harm to Petitioners and their Florida customers.

II. The DBPR Did Not Treat Petitioners Fairly in Issuing the Amended ESO, Depriving Them of Essential Due Process Rights.

The DBPR's hasty decision encouraged by that of the OAG for their own purposes in entering the Initial ESO and Amended ESO caused the DBPR to deprive Petitioners of their due process rights. The DBPR was required to provide Petitioners with "at least the same procedural protection as is given by other statutes, the State Constitution, or the United States Constitution." Fla. Stat. 120.60(6). The DBPR failed to do so for at least three reasons.

First, and most egregiously, the Amended ESO failed to inform Petitioners of their appellate rights. The Amended ESO was required, at the very least, to include a notice of Petitioners "right to an immediate appeal" pursuant to 120.569(2)(n) or 120.60(6), F.S." Fla. Admin. Code. R. 28-106.501(2).

Second, the Amended ESO deprives Petitioners of the right to present testimony and evidence to dispute the allegations in the Amended ESO, as is required pursuant to chapter 120, Florida Statutes, Article I, Section 9 of the Florida Constitution, and the Fourteenth Amendment to the United States

Constitution.[7] Procedural due process entails the opportunity to present testimony and evidence. *Pascarelli v. Unemployment Appeals Commission,* 18 So. 3d 53 (Fla. 5th DCA 2009). This failure alone renders the Amended ESO defective on its face.

The same can be said about the DBPR's failure to promptly initiate an administrative proceeding pursuant to 120.569 and 120.57 as mandated by 120.60(6)(c), Fla. Stat. To date, the DBPR has only just recently - weeks after the issuance of the Amended ESO - initiated an administrative proceeding against only that of MV Realty PBC, and has not done so at any time as against the balance of Petitioners, MV Brokerage, Ford Homes, or Ms. Zachman.

Third, the DBPR never served the Initial ESO or the Amended ESO upon Petitioners, instead providing the Initial ESO and Amended ESO directly to only that of the OAG to file as exhibits to ongoing motion practice in the State Court Litigation—a litigation where neither MV Brokerage nor Ford Homes are parties. —Fla. Stat. 455.275 required that the DBPR serve Petitioners with the Amended ESO "by regular mail or e-mail to a licensee's

[7] The DBPR's filing of administrative complaints solely against MV Realty PBC bolsters this point because it has yet to initiate any proceedings against Ms. Zachman, Ford Homes, or MV Brokerage.

last known mailing address or e-mail address of record with the department[.]" Fla. Stat. 455.275(2).

III. Absent an Order of this Court, the Amended ESO Will Cause Irreparable Immediate Economic Harm to Floridians and Petitioners

The DBPR's Amended ESO threatens significant irreparable financial harm to Petitioners and Florida citizens. This harm includes, without limitation, the inability of Floridians to list or sell their homes as they see fit with a broker of their own choosing, the inability to close on real estate transactions as they see fit with a broker of their own choosing, potential legal exposure, and lost opportunities and profits associated with residential real estate listings and closings.

The DBPR's reckless decision to summarily suspend Petitioners' real estate brokerage licenses demonstrates a complete failure to consider the economic and reputational fallout to not only the companies and individuals involved with those entities, but also the harm to their residential real estate customers. The Amended ESO simply never explains how Ms. Zachman or MV Realty PBC's ability to continue to provide real estate services is harmful to any consumer, much less that of MV Brokerage or Ford Homes.

Notwithstanding the use of "suspension" in the title of the Amended ESO, the Amended ESO is an immediate revocation of Petitioners'

brokerage licenses, the immediate cessation of their real estate brokerage businesses, and an improper deprivation of Petitioners' livelihood. Once Petitioners' Florida customers are compelled by the Amended ESO to engage a different brokerage to complete their real estate transactions—or to list their homes elsewhere—there is little realistic prospect that those customers will return to Petitioners after agency adjudication or entry of final judgment, whenever that may occur, not to mention that of the reputational damage to Petitioners in the interim and without opportunity to adequately defend themselves. This will be severely devastating to Ms. Zachman in particular, as it serves to extinguish her ability to earn a living and serve existing and future residential real estate clients as she has done for decades—effectively nullifying her professional career without having been afforded due process.

Had the DBPR at least considered a less-harsh remedy and narrowly tailored the Amended ESO, as it was required to do, the DBPR might have concluded that an order that unjustly pulls the rug out from Florida homeowners and Florida based businesses, especially those with no nexus to the State Court Litigation, is not an acceptable or legally cognizable solution.

CONCLUSION

The DBPR departed from the essential requirements of law by issuing the fatally deficient Amended ESO and summarily suspending Petitioners' real estate brokerage licenses without notice or opportunity to be heard. Moreover, the DBPR did so in blatant disregard for the severe and irreparable consequences the Amended ESO has and will continue to have on Petitioners and their Florida customers.

WHEREFORE, Petitioners request entry of an order quashing the DBPR's Amended Emergency Suspension Order.

Respectfully submitted this 5th day of June, 2025.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 5th day of June, 2025, the foregoing has been electronically filed via Florida's Statewide E-Portal System, which sends electronic notice to all counsel of record and served via email to the following:

1. Agency Clerk, [DPBR]: [AGC.Filing@myfloridalicense.com]
2. James Fortunas, Assistant General Counsel, DBPR: [james.fortunas@myfloridalicense.com]
3. Melanie Griffin, Secretary of DBPR: [Melanie.Griffin@myfloridalicense.com]

s/ Angela C. de Cespedes
Angela C. de Cespedes, Esq.

CERTIFICATE OF COMPLIANCE WITH FLA. R. APP. P. 9.045

I HEREBY CERTIFY that this petition complies with Rule 9.045 of the Florida Rules of Appellate Procedure's font size and style requirements and, accordingly, has been prepared in Arial, 14 Point Font. This petition contains 8,471 words, excluding those in the caption, cover page, table of contents, certificate of compliance, certificate of service, and signature block.

s/ Angela C. de Cespedes
Angela C. de Cespedes, Esq.